

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
JUDICIAL DEPARTMENT**

Crl. Misc. No.2105-B of 2026

Muhammad Zakariya and another **versus** The State and another

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
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15.04.2026	Mr. Muhammad Arshad Khawaja, Advocate for the petitioners Ch. Muhammad Sadiq Rehman, Additional Prosecutor General with Bilal S.I. Mr. Muhammad Khan Langah, Advocate for the complainant
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Through this petition under section 497, Cr.P.C. Muhammad Zakariya and Muhammad Akram petitioners seek their release from jail by way of grant of post-arrest bail in case FIR No.955 dated 14.09.2025, offences under sections 302, 365, 201, 114, 148, 149 PPC, registered at Police Station Saddar Alipur, District Muzaffargarh.

2. Brief facts of the case as emanating from the crime report are that on 13.09.2025, Muhammad Shahid, brother of complainant, proceeded to a local wheat grinding shop, but failed to return home. Upon initial inquiry by complainant, the shop owner’s son namely Zakariya admitted that a verbal altercation had taken place between him and Muhammad Shahid and upon being confronted subsequently in the presence of witnesses, Zakariya claimed that Muhammad Shahid had scuffled with a guest and abruptly left the premises, leaving his shoes and a handkerchief behind. Suspecting foul play due to sudden disappearance of Muhammad Shahid under mysterious circumstances, the complainant lodged the instant report. On 22.10.2025,

through a supplementary statement, the complainant introduced a narrative of extrajudicial confession alleging that the petitioners admitted before several witnesses to have committed the murder of Muhammad Shahid (deceased), hence, this case.

3. I have mused over the arguments advanced by learned counsel for the petitioners as well as learned Additional Prosecutor General assisted by learned counsel for the complainant and perused the record with their assistance.

4. After going through the narration of FIR and the evidentiary material collected by the police and presented before this Court, it transpires that while the name of petitioner Muhammad Zakariya is specifically mentioned in the crime report, his co-petitioner Muhammad Akram has not been nominated in any capacity as a culprit. Furthermore, it was admittedly an unwitnessed tragedy and the entire edifice of prosecution's case against the petitioners has been structured upon an extrajudicial confession. In this context, it evinces from the record that Muhammad Shahid (deceased) disappeared on 13.09.2025 while the crime report was lodged by his brother Muhammad Javed (complainant) on 14.09.2025. Although an unknown and unidentifiable dead body was recovered on 17.09.2025, it was not until 21.10.2025 that the complainant identified it as his brother's dead body through his last worn clothes and belongings. Crucially, it was only on the following day i.e. 22.10.2025 that the complainant recorded a supplementary statement, wherein he asserted that on the same day, he was informed by witnesses Nazir Ahmad and Muhammad Aslam that they overheard a conversation between the petitioners and their co-accused *qua* the murder of Muhammad Shahid (deceased) by them. Keeping in view the above mentioned circumstances of the case, credibility of supplementary

statement as well as extrajudicial confession allegedly made by the petitioners shall be adjudged by the trial court at an appropriate stage of trial.

5. It is a fundamental postulate of our criminal justice system that the golden thread of the “presumption of innocence” runs through the entire fabric of a trial until an accused is proven guilty by evidence of an unimpeachable character. In the case at hand, the prosecution’s reliance upon a belated extrajudicial confession fails to bridge the chasm between mere suspicion and legal proof. Where the evidentiary chain is composed of links as fragile as those presented here the law mandates that the scales of justice must tilt in favor of liberty of the accused. Furthermore, it remains a settled principle of law that an extrajudicial confession that too in the mode and manner as described by the complainant in his supplementary statement is generally considered as a weak type of evidence and is often described as notorious for being easily procured. Reliance is placed upon the case-law titled as “Allah Ditta v. The State and others” (2012 SCMR 184). In another case-law titled as “Muhammad Waseem v. The State and others” (2012 SCMR 387), the Supreme Court of Pakistan has been pleased to observe as infra:-

“..... The extra-judicial confession allegedly made by the petitioner and his co-accused prima facie has the trappings of a joint confession which is inadmissible in evidence.....”

6. The learned Additional Prosecutor General, fortified by the forceful submissions of learned counsel for the complainant, has vehemently contended that the gravamen of the charges leveled against the petitioners, being of an exceptionally heinous nature, squarely falls within the prohibitory ambit of Section 497 of the Code of Criminal

Procedure, 1898. It was further maintained that given the severity of the offence, the petitioners are precluded from seeking the discretionary indulgence of this Court for the grant of bail. However, I find myself unpersuaded by this line of reasoning. It is a canonical principle of criminal jurisprudence, firmly entrenched through consistent judicial consensus, that mere gravity of an accusation or the perceived heinousness of an offence does not, in and of itself, constitute a valid legal ground for the divestment of liberty through the refusal of bail, that too when the accused has otherwise established an entitlement to such concession. The liberty of any person is not to be curtailed as a form of pre-trial punishment solely on the basis of the nature of charge. This legal position finds robust validation in the dictum of the Supreme Court of Pakistan in the case of “Hasnain Mustafa v. The State and another” (2019 SCMR 1914).

7. The petitioners have already endured a protracted period of incarceration since their arrest. As the investigating agency has concluded its necessary ascertainments regarding their involvement and their presence is no longer necessitated for the purpose of any supplementary inquiry, retaining them within the confines of a prison cell would serve no meaningful end; rather, it would inflict an unnecessary hardship prior to the formal adjudication of guilt.

8. Due to the above mentioned facts, I am satisfied that the case against the petitioners squarely falls within the purview of subsection (2) of section 497 Cr.P.C. Consequently, this petition is **allowed** and petitioners are admitted to post-arrest bail subject to furnishing bail bonds in the sum of Rs.10,00,000/- (rupees ten hundred thousand only) each with two sureties each in the like amount to the satisfaction of the trial court.

9. It is, however, clarified that the observations made hereinabove are tentative in nature and strictly confined to the disposal of this bail petition.

(Muhammad Tariq Nadeem)
Judge

APPROVED FOR REPORTING.

(Muhammad Tariq Nadeem)
Judge

Signed on 15.04.2026

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